



# staff report

# 16-B

TO: Honorable Mayor and Members of the City Council

FROM: Jeffrey L. Stewart, City Manager  
Tae Rhee, Finance Director/City Treasurer

SUBJECT: Consideration and possible action to approve the Development Impact Fee Annual Report for Fiscal Year 2017-2018 pursuant to Government Code Section 66006.

DATE: December 10, 2018

## **EXECUTIVE SUMMARY**

Pursuant to BMC Chapter 3.24 (Ordinance No. 1117) and Chapter 3.36 (Ordinance No. 1118), the City has been collecting the public facilities and park facilities fees, respectively, since October 2006, and is required to report certain information to the City Council and public annually pursuant to the Government Code Section 66006. Section 8.a of the Resolution No. 11-22 directs the City Manager to prepare the required report. As supplemental information, financial data and other information on the Public Arts Fee (BMC Chapter 3.32; Ordinance No. 1098) and Sewer Reconstruction Fee (BMC Chapter 13.12; Ordinance No. 163; Resolution No. 08-36) have also been incorporated into the annual report.

The Public Arts Fee has a unique provision in that any developer can choose to install public art on the property that is being developed instead of paying a fee to the City. Such installation of public art by a developer requires City Council approval. In addition, during this reporting fiscal year, no Public Arts Fees were waived and any waiver will require City Council approval.

## **RECOMMENDATION TO CITY COUNCIL**

- 1) Approve the Development Impact Fee Annual Report for Fiscal Year 2017-2018 pursuant to Government Code Section 66006; or
- 2) Alternatively, discuss and take other action related to this item.

## **FISCAL IMPACT**

None. The Fund balances as of June 30, 2018, were as follows:

|                           |            |
|---------------------------|------------|
| Park Facilities Fund      | \$ 477,879 |
| Public Facilities Fund    | 0          |
| Public Arts Fund          | 254,490    |
| Sewer Reconstruction Fund | 239,666    |

**PUBLIC NOTICE**

On November 19, 2018, a Public Notice, along with the Development Impact Fee Annual Report for fiscal year 2017-2018, was posted at City Hall, the Brakensiek Library, Bellflower Substation, Thompson Park, and Simms Park.

**DISCUSSION**

The City collects public facilities and park facilities fees, which are fees associated with development projects. Government Code Section 66006 requires the City to prepare an annual report that describes certain information about the fees, such as the amount of fees collected, public improvements for which the fees were expended, fund balance, and other information. In addition, Government Code Section 66001 requires the City to provide additional information every five years making certain findings about the fees. The next five-year report is required for fiscal year 2020-2021.

City staff has prepared the attached annual report and made it available to the public at least 15 days in advance of this meeting and recommends that the City Council approve the attached report.

**ATTACHMENTS**

|                                                                     |   |
|---------------------------------------------------------------------|---|
| Public Notice .....                                                 | 3 |
| Development Impact Fee Annual Report for Fiscal Year 2017-2018..... | 4 |

CITY OF BELLFLOWER

PUBLIC NOTICE

DEVELOPMENT IMPACT FEE ANNUAL REPORT  
FOR FISCAL YEAR 2017-2018

Pursuant to Ordinance Nos. 1117 and 1118, the City has been collecting public facilities and park facilities fees since October 2006, and is required to report annually and every five years certain information to the City Council and public in compliance with the Government Code Sections 66001 and 66006.

The attached annual report has been prepared pursuant to the requirements of Government Code Section 66006, and it will be presented to the City Council for its review at a public meeting on Monday, December 10, 2018, at 7 p.m., in the Council Chambers, City Hall, 16600 Civic Center Drive, Bellflower, CA. The public is welcome to attend this Council Meeting and provide any relevant comments to the Council on the report.

If you have any questions regarding the report in advance of the Council Meeting, please contact the Finance Department, 16600 Civic Center Drive, Bellflower, CA 90706, or call (562) 804-1424, extension 2216.

By: Tae Rhee, Finance Director/City Treasurer  
Date: November 19, 2018

Development Impact Fee  
Annual Report  
for Fiscal Year 2017-2018

## CITY OF BELLFLOWER

### PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2017-2018)

This annual report section has been prepared pursuant to the requirements of Government Code Section 66006.

(A) Brief description of the type of fee in the account or fund.

Pursuant to BMC Chapter 3.36 (Ordinance No. 1118), the Park Facilities Fee is collected for the development of new and rehabilitation of existing neighborhood or community parks and recreational facilities within the City.

The objective of the Park Facilities Fee is to ensure that new development pays the capital costs associated with population growth which increases the demand for municipal services and park facilities.

(B) Amount of the fee.

A fee may be paid in lieu of or in addition to land dedication. The amount of such fee is determined by multiplying the number of acres of land which would otherwise be required to be dedicated by the fair market value per acre of the land within the proposed residential development.

|                        |          |
|------------------------|----------|
| Single Family Per Unit | \$20,327 |
| Multi-Family Per Unit  | \$17,023 |

The amount of land to be dedicated is equal to .0025 acres per person multiplied by the number of persons added to the City's population by the new residential development. The number of persons added to the City's population by the new residential development is determined by multiplying the number of new dwelling units being developed by the density factor determined.

(C) Beginning and ending balance of the account or fund.

(D) Amount of the fees collected and the interest earned.

| No. | Fiscal Year | Beginning Balance | Park Fac. Fees Collected | Interest earned | Other Revenue | Expenditures | Transfers | Ending Balance |
|-----|-------------|-------------------|--------------------------|-----------------|---------------|--------------|-----------|----------------|
| 12  | 2017-18     | \$ 300,054        | \$ 331,944               | \$ 7,245        | \$ -          | \$ 161,364   | \$ -      | \$ 477,879     |
| 11  | 2016-17     | \$ 230,946        | \$ 132,676               | \$ 3,651        | \$ -          | \$ 67,219    | \$ -      | \$ 300,054     |
| 10  | 2015-16     | \$ 31,741         | \$ 242,211               | \$ 378          | \$ 1,724      | \$ 45,108    | \$ -      | \$ 230,946     |
| 9   | 2014-15     | \$ 19,935         | \$ 50,284                | \$ 345          | \$ -          | \$ 38,823    | \$ -      | \$ 31,741      |
| 8   | 2013-14     | \$ 2,917          | \$ 63,505                | \$ 382          | \$ 500        | \$ 47,369    | \$ -      | \$ 19,935      |
| 7   | 2012-13     | \$ 129,260        | \$ 19,631                | \$ 513          | \$ -          | \$ 146,487   | \$ -      | \$ 2,917       |
| 6   | 2011-12     | \$ 176,347        | \$ 3,949                 | \$ 1,833        | \$ -          | \$ 52,869    | \$ -      | \$ 129,260     |
| 5   | 2010-11     | \$ 156,155        | \$ 25,533                | \$ 1,527        | \$ -          | \$ 6,868     | \$ -      | \$ 176,347     |
| 4   | 2009-10     | \$ 127,673        | \$ 52,548                | \$ 1,736        | \$ -          | \$ 25,802    | \$ -      | \$ 156,155     |

**CITY OF BELLFLOWER**

**PARK FACILITIES FEE ANNUAL REPORT  
(FISCAL YEAR 2017-2018)**

| <b>No.</b> | <b>Fiscal Year</b> | <b>Beginning Balance</b> | <b>Park Fac. Fees Collected</b> | <b>Interest earned</b> | <b>Other Revenue</b> | <b>Expenditures</b> | <b>Transfers</b> | <b>Ending Balance</b> |
|------------|--------------------|--------------------------|---------------------------------|------------------------|----------------------|---------------------|------------------|-----------------------|
| 3          | 2008-09            | \$ 143,863               | \$ 63,600                       | \$ 4,046               | \$ -                 | \$ 83,836           | \$ -             | \$ 127,673            |
| 2          | 2007-08            | \$ 54,819                | \$ 84,789                       | \$ 4,255               | \$ -                 | \$ -                | \$ -             | \$ 143,863            |
| 1          | 2006-07            | \$ -                     | \$ 53,941                       | \$ 878                 | \$ -                 | \$ -                | \$ -             | \$ 54,819             |
|            | Cumulative         | \$ -                     | \$1,124,611                     | \$ 26,789              | \$ 2,224             | \$ 675,745          | \$ -             | \$ 477,879            |

(E) Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.

**PROJECTS IN PROGRESS:**

**Aquatic Center Improvements**

|                     |           |                   |      |
|---------------------|-----------|-------------------|------|
| Park Facilities Fee | 2017-2018 | \$ 150,864        | 87%  |
| General Fund        | 2017-2018 | 22,050            | 13%  |
| Total               |           | <u>\$ 172,914</u> | 100% |

**Coke Avenue Park Development**

|                     |           |                  |      |
|---------------------|-----------|------------------|------|
| Park Facilities Fee | 2015-2018 | <u>\$ 18,295</u> | 100% |
|---------------------|-----------|------------------|------|

**COMPLETED PROJECTS:**

**Simms Park Fitness Center / Trail**

|                                 |           |                   |      |
|---------------------------------|-----------|-------------------|------|
| Park Facilities Fee             | 2015-2017 | \$ 63,873         | 15%  |
| General Fund                    | 2015-2017 | 53,831            | 12%  |
| L.A. County Proposition A Grant | 2015-2017 | 324,822           | 73%  |
| Total                           |           | <u>\$ 442,526</u> | 100% |

**Simms Park Playground**

|                                             |           |                   |      |
|---------------------------------------------|-----------|-------------------|------|
| Park Facilities Fee                         | 2014-2016 | \$ 20,993         | 19%  |
| Private Contribution (Est. Property & Cash) | 2015-2016 | 91,724            | 81%  |
| Total                                       |           | <u>\$ 112,717</u> | 100% |

**Caruthers Park Playground / Fitness Center**

|                     |           |                  |      |
|---------------------|-----------|------------------|------|
| Park Facilities Fee | 2015-2016 | \$ 27,567        | 32%  |
| General Fund        | 2015-2016 | 16,001           | 18%  |
| Kaiser Permanente   | 2015-2016 | 43,846           | 50%  |
| Total               |           | <u>\$ 87,414</u> | 100% |

## CITY OF BELLFLOWER

### PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2017-2018)

#### Zinn Park and Trail Improvements

|                                 |           |                   |      |
|---------------------------------|-----------|-------------------|------|
| Park Facilities Fee             | 2013-2016 | \$ 22,230         | 8%   |
| L.A. County Proposition A Grant | 2013-2015 | 251,869           | 92%  |
| Total                           |           | <u>\$ 274,099</u> | 100% |

#### Flora Vista Dog Park Construction

|                           |           |                   |      |
|---------------------------|-----------|-------------------|------|
| Park Facilities Fee       | 2012-2015 | \$ 55,836         | 16%  |
| Economic Development Fund | 2014-2015 | 296,533           | 84%  |
| Central Basin MWD Grant   | 2013-2014 | 500               | -    |
| Total                     |           | <u>\$ 352,869</u> | 100% |

#### Palm Street Park Construction

|                                      |           |                     |      |
|--------------------------------------|-----------|---------------------|------|
| Park Facilities Fee                  | 2008-2013 | \$ 313,862          | 15%  |
| Rivers & Mountains Conservancy Grant | 2012-2013 | 1,730,916           | 83%  |
| Redevelopment Funds                  | 2006-2011 | 50,862              | 2%   |
| Total                                |           | <u>\$ 2,095,640</u> | 100% |

(F) Identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.

For fiscal year 2018-2019, Park Facilities Fees have been allocated to the following projects:

#### Aquatic Center Improvements

|                                      |           |                     |      |
|--------------------------------------|-----------|---------------------|------|
| Park Facilities Fee                  | 2018-2019 | \$ 149,136          | 8%   |
| General Fund                         | 2018-2019 | 266,612             | 15%  |
| Municipal Water System Sale Proceeds | 2018-2019 | 1,375,000           | 77%  |
| Total                                |           | <u>\$ 1,790,748</u> | 100% |

(ADA restroom, locker room, and lobby improvements; re-plaster outdoor pool; roof replacements and re-plaster indoor pool.)

This project is expected to be completed by the end of January 2019.

#### Coke Avenue Park Development

|                     |           |                   |      |
|---------------------|-----------|-------------------|------|
| Park Facilities Fee | 2018-2019 | \$ 96,705         | 24%  |
| HUD CDBG Grant      | 2018-2019 | 300,000           | 76%  |
| Total               |           | <u>\$ 396,705</u> | 100% |

The City of Bellflower is currently working with the Los Angeles Department of Water and Power on the issuance of a license agreement for land tenure. This project is expected to commence during the fiscal year 2019-20.

## CITY OF BELLFLOWER

### PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2017-2018)

(G) Description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.

There were no interfund transfers or loans.

(H) Amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

There were no refunds nor allocations for some other purpose for which fees were collected.

#### Summary of Other Information from August 14, 2006 Staff Report:

|                                                                                                                                                                                                                                      |                                                                                                                                                        |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|
| <u>Park Facilities Fee Applicable to:</u><br>New Single Family<br>Replacement Single Family<br>Room Addition<br>Second Unit<br>Third (or More) Units<br>Multi-Family<br>Commercial (including Institutional)<br>Office<br>Industrial | Yes, if more than one unit<br>No<br>No<br>Yes @ 50%<br>Yes<br>Yes<br>No<br>No<br>No                                                                    |
| Permitted Uses                                                                                                                                                                                                                       | Acquisition of new and rehabilitation of existing park and recreation facilities                                                                       |
| Prohibited Uses                                                                                                                                                                                                                      | Operation and maintenance                                                                                                                              |
| Property Dedication In Lieu of Fee                                                                                                                                                                                                   | Yes                                                                                                                                                    |
| Other Exemptions                                                                                                                                                                                                                     | Development restricted to low & moderate income and senior housing (fee payable when restriction lifted)                                               |
| Factors Used to Determine Fee                                                                                                                                                                                                        | 1. Number of Dwelling Units<br>2. Density Factor - per Census<br>3. General Plan Parkland Requirement<br>4. Appraised value of land within development |
| Adjustment Factors                                                                                                                                                                                                                   | 1. Residential Density (Census)<br>2. Appraised Value                                                                                                  |

**CITY OF BELLFLOWER**

**PUBLIC FACILITIES FEE ANNUAL REPORT**  
**(FISCAL YEAR 2017-2018)**

This annual report section has been prepared pursuant to the requirements of Government Code Section 66006.

(A) Brief description of the type of fee in the account or fund.

Pursuant to BMC Chapter 3.24 (Ordinance No. 1117), the Public Facilities Fee is collected to pay for land acquisition for, and design, engineering, and construction of, the public facilities designated in the City Council resolution and reasonable costs of related outside consultant studies.

The objective of the Public Facilities Fee is to ensure that new development pays the capital costs associated with population growth which increases the demand for municipal services and public facilities.

(B) Amount of the fee.

- |                              |                                     |
|------------------------------|-------------------------------------|
| 1. Single Family Development | \$1,319 per dwelling unit           |
| 2. Multi-Family Development  | \$1,104 per dwelling unit           |
| 3. Commercial Development    | \$0.175 per square foot of building |
| 4. Office Development        | \$0.212 per square foot of building |
| 5. Industrial Development    | \$0.086 per square foot of building |

(C) Beginning and ending balance of the account or fund.

(D) Amount of the fees collected and the interest earned.

| No. | Fiscal Year | Beginning Balance | Public Fac. Fees Collected | Interest earned | Expenditures | Transfers | Ending Balance |
|-----|-------------|-------------------|----------------------------|-----------------|--------------|-----------|----------------|
| 12  | 2017-18     | \$ 54,360         | \$ 43,912                  | \$ 688          | \$ 98,960    | \$ -      | \$ -           |
| 11  | 2016-17     | \$ 136,734        | \$ 16,296                  | \$ 1,330        | \$ 100,000   | \$ -      | \$ 54,360      |
| 10  | 2015-16     | \$ 101,679        | \$ 34,122                  | \$ 933          | \$ -         | \$ -      | \$ 136,734     |
| 9   | 2014-15     | \$ 89,930         | \$ 10,978                  | \$ 771          | \$ -         | \$ -      | \$ 101,679     |
| 8   | 2013-14     | \$ 70,644         | \$ 18,561                  | \$ 725          | \$ -         | \$ -      | \$ 89,930      |
| 7   | 2012-13     | \$ 63,702         | \$ 6,266                   | \$ 676          | \$ -         | \$ -      | \$ 70,644      |
| 6   | 2011-12     | \$ 57,028         | \$ 5,993                   | \$ 681          | \$ -         | \$ -      | \$ 63,702      |
| 5   | 2010-11     | \$ 49,660         | \$ 6,889                   | \$ 479          | \$ -         | \$ -      | \$ 57,028      |
| 4   | 2009-10     | \$ 41,304         | \$ 7,845                   | \$ 511          | \$ -         | \$ -      | \$ 49,660      |
| 3   | 2008-09     | \$ 32,351         | \$ 8,001                   | \$ 952          | \$ -         | \$ -      | \$ 41,304      |
| 2   | 2007-08     | \$ 8,853          | \$ 22,470                  | \$ 1,028        | \$ -         | \$ -      | \$ 32,351      |
| 1   | 2006-07     | \$ -              | \$ 8,757                   | \$ 96           | \$ -         | \$ -      | \$ 8,853       |
|     | Cumulative  | \$ -              | \$ 190,090                 | \$ 8,870        | \$ 198,960   | \$ -      | \$ -           |

**CITY OF BELLFLOWER**

**PUBLIC FACILITIES FEE ANNUAL REPORT  
(FISCAL YEAR 2017-2018)**

(E) Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.

| <u>The Mayne Events Center and Fire Museum</u>                           |           | <u>Expenditures<br/>Thru 2017-18</u> |      |
|--------------------------------------------------------------------------|-----------|--------------------------------------|------|
| Public Facilities Fee                                                    | 2016-2018 | \$ 198,960                           | 2%   |
| Economic Development and General Funds                                   | 2013-2018 | 7,784,341                            | 75%  |
| Lease Financing                                                          | 2017-2018 | 200,000                              | 2%   |
| Proceeds from Sale of Property to L.A.<br>County Fire Museum Association | 2016-2018 | 650,000                              | 6%   |
| Municipal Water System Sale Proceeds                                     | 2017-2018 | <u>1,538,151</u>                     | 15%  |
| Total                                                                    |           | <u>\$ 10,371,452</u>                 | 100% |

(F) Identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.

There were no public improvements that remained incomplete.

(G) Description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.

There were no interfund transfers or loans.

(H) Amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

There were no refunds nor allocations for some other purpose for which fees were collected.

**CITY OF BELLFLOWER**  
**PUBLIC FACILITIES FEE ANNUAL REPORT**  
**(FISCAL YEAR 2017-2018)**

**Summary of Other Information from August 14, 2006 Staff Report:**

|                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                             |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <u>Public Facilities Fee Applicable to:</u><br>New Single Family<br>Replacement Single Family<br>Room Addition<br>Second Unit<br>Third (or More) Units<br>Multi-Family<br>Commercial (including Institutional)<br>Office<br>Industrial | Yes<br>No (if sq ft increase <50%)<br>No<br>Yes<br>Yes<br>Yes<br>Yes<br>Yes<br>Yes                                                                                                                                                                                          |
| Permitted Uses                                                                                                                                                                                                                         | Land or property acquisition, construction and expansion for specified public facilities (i.e., City Hall, Public Works Yard, City storage facilities, and alternative facilities for similar uses.)                                                                        |
| Prohibited Uses                                                                                                                                                                                                                        | Operation and maintenance                                                                                                                                                                                                                                                   |
| Property Dedication In Lieu of Fee                                                                                                                                                                                                     | Credit for Facilities Installed                                                                                                                                                                                                                                             |
| Other Exemptions                                                                                                                                                                                                                       | 1. Alteration/addition to existing residential structure, except addition of dwelling unit.<br>2. Replacement of existing residential structure without adding dwelling units.<br>3. Replacement of existing non-residential structure with no additional increase of area. |
| Factors Used to Determine Fee                                                                                                                                                                                                          | 1. Facility Standard<br>a. Cost of Construction<br>b. Cost of Land<br>2. Density Factor<br>a. Residential – per Census or DOF estimate<br>b. Non-Residential – per SCAG Study<br>3. Admin Fee – per study                                                                   |
| Adjustment Factors                                                                                                                                                                                                                     | 1. Residential Density (Census or DOF Estimate)<br>2. Cost of Construction<br>3. Cost of Land                                                                                                                                                                               |

**CITY OF BELLFLOWER**  
**SUPPLEMENTAL INFORMATION**  
**PUBLIC ARTS AND SEWER RECONSTRUCTION FEES ANNUAL REPORT**  
**(FISCAL YEAR 2017-2018)**

This report has been prepared as supplemental information to the annual report prepared pursuant to the requirements of Government Code Section 66006.

(A) Brief description of the type of fee in the account or fund.

Public Arts Fee. Pursuant to BMC Chapter 3.32 (Ordinance No. 1098), the Public Arts Fee collected can be used to provide works of art in public places in order to promote the visual arts in the City of Bellflower by creating a collection of permanent outdoor art work by recognized artists throughout the City, to be of public benefit, and to present the community with a variety of art work styles and themes, all of the highest possible quality.

Sewer Reconstruction Fee. Pursuant to BMC Chapter 13.12 (Ordinance No. 163) and Resolution No. 08-36, the Sewer Reconstruction Fee collected can be expended in accordance with the City's Sewer Reconstruction Program and Plan. All engineering costs, refunds, mileage, overhead, incidentals and construction costs necessarily incurred in the reconstruction of sewers can be charged to the fund, to the extent allowed by law.

(B) Amount of the fee.

|                          |                                                                                                |
|--------------------------|------------------------------------------------------------------------------------------------|
| Public Arts Fee          | 1% of applicable project costs                                                                 |
| Sewer Reconstruction Fee | \$0.63 per gallon per day of additional peak flow created by new construction or change of use |

(C) Beginning and ending balance of the account or fund.

(D) Amount of the fees collected and the interest earned.

Public Arts Fee

| No. | Fiscal Year | Beginning Balance | Public Arts Fee Collected | Interest Earned / Other | Expenditures | Transfers | Ending Balance |
|-----|-------------|-------------------|---------------------------|-------------------------|--------------|-----------|----------------|
| 13  | 2017-18     | \$ 186,206        | \$ 65,110                 | \$ 3,174                | \$ -         | \$ -      | \$ 254,490     |
| 12  | 2016-17     | \$ 163,112        | \$ 21,053                 | \$ 2,041                | \$ -         | \$ -      | \$ 186,206     |
| 11  | 2015-16     | \$ 62,012         | \$ 100,440                | \$ 660                  | \$ -         | \$ -      | \$ 163,112     |
| 10  | 2014-15     | \$ 38,927         | \$ 41,759                 | \$ 522                  | \$ 19,196    | \$ -      | \$ 62,012      |
| 9   | 2013-14     | \$ 38,895         | \$ 22,850                 | \$ 447                  | \$ 23,265    | \$ -      | \$ 38,927      |
| 8   | 2012-13     | \$ (8,078)        | \$ 56,762                 | \$ 219                  | \$ 10,008    | \$ -      | \$ 38,895      |
| 7   | 2011-12     | \$ (51,578)       | \$ 43,500                 | \$ -                    | \$ -         | \$ -      | \$ (8,078)     |
| 6   | 2010-11     | \$ (62,578)       | \$ 11,000                 | \$ - /<br>\$ 2,000      | \$ 2,000     | \$ -      | \$ (51,578)    |

**CITY OF BELLFLOWER**

**SUPPLEMENTAL INFORMATION  
PUBLIC ARTS AND SEWER RECONSTRUCTION FEES ANNUAL REPORT  
(FISCAL YEAR 2017-2018)**

| <b>No.</b> | <b>Fiscal Year</b> | <b>Beginning Balance</b> | <b>Public Arts Fee Collected</b> | <b>Interest Earned / Other</b> | <b>Expenditures</b> | <b>Transfers</b> | <b>Ending Balance</b> |
|------------|--------------------|--------------------------|----------------------------------|--------------------------------|---------------------|------------------|-----------------------|
| 5          | 2009-10            | \$ 145,725               | \$ (9,500)                       | \$ 619                         | \$ 199,422          | \$ -             | \$ (62,578)           |
| 4          | 2008-09            | \$ 110,035               | \$ 37,500                        | \$ 3,190                       | \$ 5,000            | \$ -             | \$ 145,725            |
| 3          | 2007-08            | \$ 70,252                | \$ 35,744                        | \$ 4,039                       | \$ -                | \$ -             | \$ 110,035            |
| 2          | 2006-07            | \$ 30,103                | \$ 37,750                        | \$ 2,399                       | \$ -                | \$ -             | \$ 70,252             |
| 1          | 2005-06            | \$ -                     | \$ 29,941                        | \$ 162                         | \$ -                | \$ -             | \$ 30,103             |
|            | Cumulative         | \$ -                     | \$ 493,909                       | \$ 19,472                      | \$ 258,891          | \$ -             | \$ 254,490            |

Sewer Reconstruction Fee

| <b>No.</b> | <b>Fiscal Year</b> | <b>Beginning Balance</b> | <b>Sewer Recon. Fee Collected</b> | <b>Interest Earned</b> | <b>Expenditures</b> | <b>Transfers</b> | <b>Ending Balance</b> |
|------------|--------------------|--------------------------|-----------------------------------|------------------------|---------------------|------------------|-----------------------|
| <b>11</b>  | <b>2017-18</b>     | <b>\$ 211,944</b>        | <b>\$ 24,538</b>                  | <b>\$ 3,184</b>        | <b>\$ -</b>         | <b>\$ -</b>      | <b>\$ 239,666</b>     |
| 10         | 2016-17            | \$ 193,374               | \$ 16,364                         | \$ 2,206               | \$ -                | \$ -             | \$ 211,944            |
| 9          | 2015-16            | \$ 175,374               | \$ 16,419                         | \$ 1,581               | \$ -                | \$ -             | \$ 193,374            |
| 8          | 2014-15            | \$ 140,300               | \$ 33,720                         | \$ 1,354               | \$ -                | \$ -             | \$ 175,374            |
| 7          | 2013-14            | \$ 120,473               | \$ 18,656                         | \$ 1,171               | \$ -                | \$ -             | \$ 140,300            |
| 6          | 2012-13            | \$ 113,168               | \$ 6,127                          | \$ 1,178               | \$ -                | \$ -             | \$ 120,473            |
| 5          | 2011-12            | \$ 91,180                | \$ 20,829                         | \$ 1,159               | \$ -                | \$ -             | \$ 113,168            |
| 4          | 2010-11            | \$ 104,518               | \$ 378                            | \$ 859                 | \$ 14,575           | \$ -             | \$ 91,180             |
| 3          | 2009-10            | \$ 109,062               | \$ 1,134                          | \$ 1,344               | \$ 7,022            | \$ -             | \$ 104,518            |
| 2          | 2008-09            | \$ 279,951               | \$ 3,276                          | \$ 7,151               | \$ 181,316          | \$ -             | \$ 109,062            |
| 1          | 2007-08            | \$ 274,958               | \$ 331                            | \$ 11,648              | \$ 6,986            | \$ -             | \$ 279,951            |
|            | Cumulative         | \$ 274,958               | \$ 141,772                        | \$ 32,835              | \$ 209,899          | \$ -             | \$ 239,666            |

(E) Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.

Public Arts Fee Expenditures:

|                                                                       | <b>Expenditures Thru 2017-18</b> | <b>% of Costs Funded with Fees</b> |
|-----------------------------------------------------------------------|----------------------------------|------------------------------------|
| Journey to Market                                                     | \$ 108,000                       | 100%                               |
| Belle the Cow                                                         | 106,430                          | 100%                               |
| Colored StreetPrint/<br>16922 Bellflower Blvd (Fronk's/Café Camellia) | 23,265                           | 100%                               |

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Public Arts Fee Expenditures:

|                                                           | Expenditures<br>Thru 2017-18 | % of Costs<br>Funded with Fees |
|-----------------------------------------------------------|------------------------------|--------------------------------|
| Gateway Arch                                              | 16,231                       | 100%                           |
| Mural/Breezeway/<br>16700 Bellflower Blvd (Belmont Court) | 2,965                        | 100%                           |
| Gas Pump Utility Box                                      | 2,000                        | 100%                           |
| Total Costs Funded with Fees                              | <u>\$ 258,891</u>            |                                |

Sewer Reconstruction Fee Expenditures:

|                                 | Expenditures<br>From 2007-08<br>Thru 2016-18 | % of Costs<br>Funded with Fees |
|---------------------------------|----------------------------------------------|--------------------------------|
| Sewer Line Condition Assessment | \$ 182,556                                   | 100%                           |
| Sewer Main Line Repairs         | 19,235                                       | 4%                             |
| Other costs                     | 8,108                                        | 100%                           |
| Total Costs Funded with Fees    | <u>\$ 209,899</u>                            |                                |

|                                        | General Fund<br>Expenditures | % of Costs<br>Funded by GF |
|----------------------------------------|------------------------------|----------------------------|
| Sewer Main Line Repairs (General Fund) | <u>\$ 522,361</u>            | 96%                        |

(F) Identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.

There were no public improvements that remained incomplete..

(G) Description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.

There were no interfund transfers or loans.

(H) Amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

There were no refunds nor allocations for some other purpose for which fees were collected.

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**Other Information Regarding the Public Arts Fee:**

**3.32.030 Projects Subject to the Public Arts Ordinance.**

- A. The requirements of this chapter shall apply to the following activities:
1. All capital improvement projects where the project cost exceeds two hundred and fifty thousand dollars (\$250,000.00);
  2. All commercial/industrial development projects where the project cost exceeds two hundred and fifty thousand dollars (\$250,000.00); and
  3. All residential projects of more than two (2) lots or units, including single-family residential structures, condominiums, apartments, townhouses or other dwelling units, where the project cost exceeds five hundred thousand dollars (\$500,000.00).
- B. Notwithstanding the foregoing, the requirements of this chapter shall not apply to the following activities:
1. Any project which consists solely of the reconstruction of structures which have been damaged by fire, flood, wind, earthquake or other calamity;
  2. Any project constructed by a government agency other than the City or the Bellflower Redevelopment Agency or which is constructed on property exempt from taxation pursuant to California Revenue and Taxation Code Section 214; and
  3. Single and multi-family residential remodeling.

**3.32.040 Requirement to Provide Art Work or Pay In-Lieu Contribution.**

When a project is subject to the requirements of this chapter, the applicant shall provide public art by complying with one (1) of the following provisions. The choice of compliance methods shall be within the sole discretion of the applicant.

- A. Acquiring and Installing Art. The project applicant shall acquire and install art work in a public place on or in the vicinity of the project site, as approved by the City Council pursuant to this chapter. The cost or value of such work shall equal or exceed one percent (1%) of the project cost.
- B. In-Lieu Contribution. In-lieu of acquiring and installing art work, the project applicant may contribute an amount equal to one percent (1%) of the project cost to the Public Arts Fund.

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**Other Information Regarding the Sewer Reconstruction Fee:**

**Table of Peak Flows  
for Various Occupancies**

| <b>Occupancy</b>                                                              | <b>Peak Flow</b>                            |
|-------------------------------------------------------------------------------|---------------------------------------------|
| Apartment                                                                     | 600 gal./day/dwelling unit                  |
| Assembly areas                                                                | 15 gal./day/person                          |
| Auditorium                                                                    | 15 gal./day/seat                            |
| Automobile wash                                                               | 86,400 gal./day/wash lane                   |
| Bar and cocktail lounges                                                      | 60 gal./day/seat                            |
| Religious facility                                                            | 600 gal./day/1000 square feet of floor area |
| Hospitals                                                                     | 1500 gal./day/bed                           |
| Hotels                                                                        | 600 gal./day/room                           |
| Industry, light (no water processes)                                          | 600 gal./day/1000 square feet of floor area |
| Laundry, automatic (public)                                                   | 225 gal./day/machine                        |
| Medical office                                                                | 900 gal./day/1000 square feet of floor area |
| Mobile homes and/or trailer courts                                            | 400 gal./day/unit                           |
| Motels                                                                        | 600 gal./day/unit                           |
| Office                                                                        | 600 gal./day/1000 square feet of floor area |
| Restaurant                                                                    | 150 gal./day/seat                           |
| Schools                                                                       |                                             |
| a. Elementary                                                                 | 27 gal./day/capita                          |
| b. Other                                                                      | 75 gal./day/capita                          |
| Stand or drive-in for sale of lunches, ice cream, beverages and similar items | 900 gal./day/1000 square feet of floor area |
| Storage garages and warehouses                                                | 75 gal./day/1000 square feet of floor area  |
| Stores, commercial and display                                                | 300 gal./day/1000 square feet of floor area |